

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. _____

☐ COMMITTEE AMENDMENT

(Date)

I move to amend Senate Bill No. 1806, on Page 10, Line 9 ½, by inserting the attached new Section 4, by renumbering subsequent sections, and by amending the title to conform.

Submitted by:

Senator Jett

Jett-DC-FA-SB1806
3/24/2026 10:06 AM

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1 SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-6-103,
2 as amended by Section 1, Chapter 215, O.S.L. 2025 (10A O.S. Supp.
3 2025, Section 1-6-103), is amended to read as follows:

4 Section 1-6-103. A. Juvenile court records and Department of
5 Human Services agency records pertaining to a child may be
6 inspected, and their contents shall be disclosed, without a court
7 order to the following persons upon showing of proper credentials
8 and pursuant to their lawful duties:

9 1. The court having the child currently before it in any
10 proceeding pursuant to this title, any district court or tribal
11 court to which such proceedings may be transferred, employees and
12 officers of the court in the performance of their duties,
13 including, but not limited to, guardians ad litem appointed by the
14 court, and court-appointed special advocates;

15 2. A district attorney, United States Attorney, or Attorney
16 General of this or another state and the employees of such offices
17 in the course of their official duties pursuant to this title or
18 the prosecution of crimes against children, or upon their request
19 in their official capacity as advisor in a grand jury proceeding;

20 3. The attorney representing a child who is the subject of a
21 proceeding pursuant to the provisions of this title or other
22 proceeding where child custody or visitation is at issue;

23 4. Employees of juvenile bureaus in the course of their
24 official duties pursuant to this title, and employees of the

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1 Department of Human Services in the course of their official
2 duties;

3 5. Employees of a law enforcement agency of this or another
4 state or military enclave and employees of a child protective
5 service of another state or military enclave in the course of their
6 official duties pertaining to investigations of a report of known
7 or suspected child abuse or neglect or crimes against children or
8 for the purpose of determining whether to place a child in
9 protective custody;

10 6. The Oklahoma Commission on Children and Youth as provided
11 by Sections 601.2 and 601.6 of Title 10 of the Oklahoma Statutes;

12 7. The Office of Juvenile Affairs;

13 8. A federally recognized Indian tribe in which the child who
14 is the subject of the record is a member or is eligible to become a
15 member of the tribe and is the biological child of a member of an
16 Indian tribe pursuant to the provisions of the ~~Federal~~ federal
17 Indian Child Welfare Act of 1978 and the Oklahoma Indian Child
18 Welfare Act; provided such Indian tribe, in the course of its
19 official duties, is:

20 a. investigating a report of known or suspected child
21 abuse or neglect or crimes against children or for
22 the purpose of determining whether to place a child
23 in protective custody,

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- 1 b. providing services to or for the benefit of a child
2 including, but not limited to, protective, emergency,
3 social, and medical services, or
4 c. the tribe, the tribal court, or the tribal child
5 welfare program has asserted jurisdiction or
6 intervened in any case in which the child is the
7 subject of the proceedings or is a party to the
8 proceedings pursuant to the authority provided in the
9 Oklahoma Indian Child Welfare Act.

10 The records that are to be provided to Indian tribes under this
11 subsection shall include all case records, reports, and documents
12 as defined in Section 1-6-101 of this title;

13 9. The Governor or to any person the Governor designates, in
14 writing;

15 10. Any federal official of the United States Department of
16 Health and Human Services;

17 11. Any member of the Legislature ~~approved in writing by the~~
18 ~~Speaker of the House of Representatives or the President Pro~~
19 ~~Tempore of the Senate;~~

20 12. A foster parent, with regard to records concerning the
21 social, medical, psychological, or educational needs of a child
22 currently placed with that foster parent or of a child being
23 considered for placement with that foster parent;

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1 13. An employee of any state or federal corrections or law
2 enforcement agency in the performance of the official duties of the
3 employee concerning presentence investigations or supervision of a
4 parent of an alleged or adjudicated deprived child, or the legal
5 guardian, custodian, or any other adult member of the child's home
6 who is responsible for the health, safety, or welfare of the child;

7 14. An employee of a state agency of this or another state in
8 the performance of the official duties of the employee concerning
9 the establishment of paternity or the establishment or enforcement
10 of a child support order or other entitlement for the benefit of a
11 child; provided, disclosure shall be limited to information
12 directly related to the purpose of such disclosure;

13 15. Any member of a city-county ~~Health Department~~ health
14 department Fetal Infant Mortality Review (FIMR) in the performance
15 of the official duties of the member concerning investigations of
16 fetal and infant mortalities; provided, disclosure shall be limited
17 to information directly related to the purpose of such disclosure;

18 16. Any designated federal authorities at the federal military
19 installation where a service member is assigned, when the child is
20 a member of an active duty military family, as provided by
21 paragraph 4 of subsection A of Section 1-2-102 of this title;

22 17. Any member of the Child Welfare Review Committee for the
23 Death and Near Death of Children With Disabilities as established
24 by Section 1-10-103 of this title; and

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1 18. The Office of Client Advocacy within the State Department
2 of Health.

3 B. In addition to the persons listed in subsection A of this
4 section, juvenile court records may be inspected, and their
5 contents shall be disclosed, without a court order to the following
6 persons upon showing of proper credentials and pursuant to their
7 lawful duties:

8 1. Employees of court-appointed special advocate programs, as
9 defined in Section 1-1-105 of this title, in the course of their
10 official duties pertaining to recruiting, screening, training,
11 assigning cases, supervising, and supporting volunteers in their
12 roles as guardian ad litem pursuant to Section 1-4-306 of this
13 title;

14 2. Members of postadjudication review boards established
15 pursuant to the provisions of Section 1116.2 of Title 10 of the
16 Oklahoma Statutes, the Child Death Review Board, and
17 multidisciplinary personnel. In addition to juvenile court
18 records, members of such postadjudication review boards may
19 inspect, without a court order, information that includes, but is
20 not limited to:

- 21 a. psychological and medical records,
22 b. placement history and information, including the
23 names and addresses of foster parents,
24 c. family assessments,

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1 d. treatment or service plans, and

2 e. school records;

3 3. The Department of Human Services or other public or private
4 agency or individual having court-ordered custody or physical
5 custody pursuant to Department placement of the child, or
6 conducting a child abuse or neglect investigation of the child who
7 is the subject of the record. In addition to juvenile court
8 records, employees of the Department may inspect, without a court
9 order and upon a showing of proper credentials and pursuant to
10 their lawful duties, information that includes, but is not limited
11 to:

12 a. psychological and medical records, and

13 b. nondirectory education records;

14 4. The child who is the subject of the record and the parents,
15 legal guardian, custodian, or foster parent of such child; and

16 5. A person authorized by the court to conduct bona fide
17 research, provided such research may not publish the names or
18 identities of parents, children, or other persons contained in the
19 records.

20 C. In addition to the persons and entities named in subsection
21 A of this section, Department of Human Services agency records may
22 be inspected, and their contents shall be disclosed, without a
23 court order to the following persons upon showing of proper
24 credentials and pursuant to their lawful duties:

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1 1. Postadjudicatory review boards, court-appointed special
2 advocates, and members of the Child Death Review Board;

3 2. Any district court which has ordered a home study by the
4 Department in an action for divorce, annulment, custody of a child,
5 or appointment of a legal guardian of a child, or any subsequent
6 proceeding in such actions; provided, however, the Department may
7 limit disclosure in the home study to summaries or to information
8 directly related to the purpose of the disclosure;

9 3. Members of multidisciplinary teams or multidisciplinary
10 personnel designated by the Department, investigating a report of
11 known or suspected child abuse or neglect or providing services to
12 a child or family which is the subject of the report;

13 4. A physician who has before him or her a child whom the
14 physician reasonably suspects may be abused or neglected or any
15 health care or mental health professionals involved in the
16 evaluation or treatment of the child or the parents, legal
17 guardian, foster parent, custodian, or other family members of the
18 child;

19 5. Any public or private agency or person authorized by the
20 Department to diagnose, or provide care, treatment, supervision, or
21 other services to a child who is the subject of a report or record
22 of child abuse or neglect; provided, the Department may limit such
23 disclosure to summaries or to information directly necessary for
24 the purpose of such disclosure;

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1 6. Any person or agency for research purposes, if all of the
2 following conditions are met:

3 a. the person or agency conducting the research is
4 employed by ~~the State of Oklahoma~~ this state or is
5 under contract with this state and is authorized by
6 the Department to conduct the research, and

7 b. the person or agency conducting the research ensures
8 that all documents containing identifying information
9 are maintained in secure locations and access to the
10 documents by unauthorized persons is prohibited; that
11 no identifying information is included in documents
12 generated from the research conducted; and that all
13 identifying information is deleted from documents
14 used in the research when the research is completed;

15 7. The Oklahoma Health Care Authority; and

16 8. A medical examiner when such person is determining the
17 cause of death of a child.

18 D. In accordance with the rules promulgated for such purpose
19 pursuant to Section 620.6 of Title 10 of the Oklahoma Statutes,
20 records listed in subsection A of Section 1-6-102 of this title may
21 be inspected and their contents disclosed without a court order to
22 participating agencies.

23 E. The court may disclose to an employee of an out-of-state
24 entity, licensed to perform adoption home studies in that state,

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1 whether the prospective adoptive parent has had parental rights to
2 a child terminated in ~~Oklahoma~~ this state or whether the
3 prospective adoptive parent has relinquished parental rights to a
4 child in ~~Oklahoma~~ this state.

5 F. Nothing in this section shall be construed as prohibiting
6 the Department from disclosing such confidential information as may
7 be necessary to secure appropriate care, treatment, protection, or
8 supervision of a child alleged to be abused or neglected.

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